

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Andrew Ridge	Team: Squad #05	CCRB Case #: 201900866	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/04/2019 11:44 PM	Location of Incident: inside the El Rancho Motel located at 3701 White Plains Road; outside the 47th Precinct stationhouse	18 Mo. SOL 2/18/2021	Precinct: 47
Date/Time CV Reported Tue, 01/29/2019 7:43 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 01/29/2019 7:43 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Michele Butera	05397	948723	VED ZN1

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Jose Vargas	06747	923299	VED ZN1

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Michele Butera	Abuse: Inside 3701 White Plains Road in the Bronx, Detective Michele Butera performed a cavity search of § 87(2)(b)	A . Unsubstantiated
B . DT3 Michele Butera	Abuse: In the vicinity of the 47th Precinct stationhouse, Detective Michele Butera threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . DT3 Michele Butera	Discourtesy: In the vicinity of the 47th Precinct stationhouse, Detective Michele Butera spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On January 29, 2019, § 87(2)(b) filed this complaint with the CCRB online. § 87(2)(b) filed the complaint while incarcerated on Rikers Island.

On January 4, 2019, at 11:44 p.m., officers from Vice Enforcement Division Zone 1, including Detective Michele Butera, apprehended § 87(2)(b) inside a motel at 3701 White Plains Road in the Bronx. While inside 3701 White Plains Road, Det. Butera allegedly performed a cavity search of § 87(2)(b) (**Allegation A: Abuse of Authority, unsubstantiated**). Outside the 47th Precinct stationhouse, Det. Butera allegedly said, “If there weren’t so many cameras around here, I’d take you to the side over here, and I’d beat your ass” (**Allegation B: Abuse of Authority, unsubstantiated; Allegation C: Discourtesy, unsubstantiated**).

The officers arrested § 87(2)(b) on a number of charges, including § 87(2)(b) (BR 03).

The investigation recovered video surveillance footage from 3701 White Plains Road (BR 01). Officers from Vice Enforcement Division Zone 1 were not assigned body-worn cameras at the time of the incident. All references to video evidence below refer to the time stamp in the video player, not any on-screen clock embedded in the video itself.

§ 87(2)(g)

Findings and Recommendations

Allegation A: Abuse of Authority: Inside 3701 White Plains Road in the Bronx, Detective Michele Butera performed a cavity search of § 87(2)(b)

In his initial online complaint, § 87(2)(b) recounted that an “older white male officer” performed an “internal search of [his] anus” while searching him in the lobby of the motel (BR 07). § 87(2)(b) complained that he “was called names and treated like a piece of meat,” that he was a “victim of sexual molestation by a cop,” and that he suffered severe PTSD and could not sleep or function correctly since the incident.

On March 2, 2019, § 87(2)(b) filed a Notice of Claim with the NYC Comptroller, in which he recounted that an officer lifted his jacket while frisking him and inserted his right index finger into § 87(2)(b)’s rectum. The officer’s fingernail scratched his rectum. § 87(2)(b) asked the officer what he was doing, and the officer replied, “You’re under arrest, I can do whatever I want to you.” § 87(2)(b) noted that he feared seeking medical attention after the incident. § 87(2)(b)

He stated his intention to seek \$250,000 in compensation (see Privileged Documents).

The investigation was not able to interview § 87(2)(b) until May 2019. During his CCRB interview, § 87(2)(b) identified the officer who searched him as Detective Bekim Vucetaj because he found Det. Vucetaj’s name on his arrest paperwork. As will be discussed later, the investigation identified Det. Butera as the subject of § 87(2)(b)’s allegations. § 87(2)(b) recounted that Det. Butera patted down his entire body except for his legs, from his upper torso to his groin (BR 02). Det. Butera then searched § 87(2)(b)’s pockets and removed their contents. Det. Butera then reached his bare right hand into § 87(2)(b)’s underwear and slid the

hand along § 87(2)(b)'s intergluteal cleft towards § 87(2)(b)'s anus. Det. Butera inserted his right index finger into § 87(2)(b)'s anus for approximately two and a half to five seconds before removing it. In total, Det. Butera's hand remained in § 87(2)(b)'s underwear for approximately ten seconds. § 87(2)(b) immediately stepped back and asked Det. Butera what he was doing. Det. Butera told § 87(2)(b) that he was under arrest and that he could therefore do whatever he wished to do. § 87(2)(b) denied that any officers called him "names," as he had mentioned in his initial complaint.

§ 87(2)(b) described the officer who searched him as having no facial hair and as not wearing glasses. He also recounted that the officer was wearing blue jeans, a blue plaid shirt, and an NYPD jacket with reflective letters and stripes. He also recounted that only one officer searched him in the motel lobby.

§ 87(2)(b) believed that the front desk clerk, later identified as § 87(2)(b), witnessed the cavity search. Despite extensive attempts, the CCRB was unable to obtain a statement from § 87(2)(b).

§ 87(2)(b)

§ 87(2)(a) PHL § 18(6)

The surveillance footage shows that two officers searched § 87(2)(b) (BR 01). Beginning at approximately 00:45, Sergeant Donald Gannon of Vice Enforcement Division Zone 1 pats down § 87(2)(b)'s body and reaches into his pockets but takes no action consistent with an anal cavity search. Sgt. Gannon wears glasses, has a beard, and is not wearing clothing consistent with § 87(2)(b)'s description of the subject officer. At approximately 02:30, Det. Butera pats down § 87(2)(b)'s body and reaches into his pockets. Det. Butera wears glasses, has a beard, wears a striped winter hat, and is not wearing clothing consistent with § 87(2)(b)'s description of the subject officer. At approximately 02:45, Det. Butera's left hand becomes

obsured by § 87(2)(b)'s knee-length coat, as he appears to continue frisking or searching in the vicinity of § 87(2)(b)'s waist. Det. Butera's right hand and arm are obscured by § 87(2)(b)'s body, but he also appears to use his right hand during this process. During this time, § 87(2)(b) takes a small step to the right with his right foot, but does not otherwise move his body. By approximately 2:50, Det. Butera's left hand returns to view as he moves backward and away from § 87(2)(b). Due to the camera angle and the length of § 87(2)(b)'s coat, the footage does not show clearly the movements of Det. Butera's hands during the five seconds in which he appeared to search in the area of § 87(2)(b)'s waist. § 87(2)(b)'s face is not visible in the footage, but both he and Det. Butera appear to be speaking throughout the search. When Det. Butera moves backward at 02:50, he appears to respond to something said by § 87(2)(b) and he speaks to § 87(2)(b) for approximately eight seconds before bending down to frisk § 87(2)(b)'s lower legs. Det. Butera continues searching § 87(2)(b)'s coat afterward, but there is no additional point in the footage at which it appears that Det. Butera reaches in a manner consistent with his sticking his hand into the rear of § 87(2)(b)'s pants.

§ 87(2)(g)

Det. Butera denied that he put his hand inside § 87(2)(b)'s underwear and denied that he put a finger into § 87(2)(b)'s anus (BR 04). He also denied that any other officer did so, and he denied that § 87(2)(b) ever complained to him that any officer had taken those actions. By the time of his CCRB interview, nearly eleven months after the incident, Det. Butera did not have any independent recollection of any frisks or searches of § 87(2)(b). He knew only that they would have taken place prior to § 87(2)(b) being placed in the prisoner van. Det. Butera reviewed the surveillance footage, but it did not refresh his recollection of his search of § 87(2)(b) and he was not able to specify what exactly he was doing when his hands were obscured by § 87(2)(b)'s coat. He noted that Sgt. Gannon had already searched § 87(2)(b) and explained that another officer typically conducts a secondary search.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Abuse of Authority: In the vicinity of the 47th Precinct stationhouse, Detective Michele Butera threatened § 87(2)(b) with the use of force.
Allegation C: Discourtesy: In the vicinity of the 47th Precinct stationhouse, Detective Michele Butera spoke discourteously to § 87(2)(b)

It is undisputed that Detective Jose Vargas and Det. Butera escorted § 87(2)(b) from the prisoner van upon arriving at the 47th Precinct stationhouse.

§ 87(2)(b) alleged that while escorting him from the van, Det. Butera said, “I don’t like you,” and, “You are going to end up dead if you keep doing what you are doing.” § 87(2)(b) said, “Alright,” and Det. Butera said, “This place is surrounded by cameras. If there weren’t so many cameras around here, I’d take you to the side over here, and I’d beat your ass.”

Det. Butera recounted that he brought § 87(2)(b) from the prisoner van into the stationhouse, but he did not have any specific recollection of what took place during that time. And he could not remember speaking to § 87(2)(b). Det. Butera denied making the alleged threat of force and using the word “ass.” Det. Butera denied that anyone threatened to use force against § 87(2)(b) or that anyone used profanity with him.

Det. Vargas could not recall whether Det. Butera interacted with § 87(2)(b) on the way into the stationhouse, but he denied hearing Det. Butera make the alleged remarks (BR 05).

§ 87(2)(g)

Therefore, it is recommended that **Allegations B-C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 06).
- Det. Butera has been a member of service for nine years and has been a subject in six CCRB complaints and 12 allegations, one of which is part of a CCRB case that has not yet closed, and three of which were substantiated:
 - Case 201411762 involved substantiated allegations of Abuse – Question and Abuse – Stop against Det. Butera. The Board recommended Formalized Training and the NYPD imposed Formalized Training for both allegations.
 - Det. Butera has one Discourtesy – Word allegation pleaded against him, which is part of the CCRB case that has not yet been closed.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming mental distress and rectal pain and seeking \$250,000 as redress (see Privileged Documents).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 5

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date